

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>	1. SOLICITATION NUMBER	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE	OF	PAGES
	040ADV-26-R-0012	☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL		1		31

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER		5. REQUISITION/PURCHASE REQUEST NUMBER See Schedule		6. PROJECT NUMBER		
7. ISSUED BY		CODE	8. ADDRESS OFFER TO			
GPO 732 North Capitol St NW Washington, DC, 20401, US		GPO				
9. FOR INFORMATION CALL:		a. NAME		b. TELEPHONE NUMBER <i>(Include area code) (NO COLLECT CALLS)</i>		
		WHITE, TROY D				

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

This solicitation seeks a qualified firm to design and renovate space on the 5th floor of the US Government Publishing Office-Building B to support the establishment of a new adhesive mixing area and a secure storage room. All work to be completed within 47 weeks (329 days) of the Notice to Proceed (NTP). Submission of Design timeline, safety plans, quality control plan, schedules, pre-construction submittals, etc. shall be required to be submitted within 14 days of the Construction NTP.

11. The contractor shall begin performance within <u>7</u> calendar days and complete it within <u>329</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☐ mandatory ☒ negotiable. (See <u>SOW</u>).	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? <i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i> ☒ YES ☐ NO	12b. CALENDAR DAYS 14

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by 17:0 *(hour)*

local time 05/1/2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes

containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☐ is, ☒ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 90 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)

15. TELEPHONE NUMBER (Include area code)

16. REMITTANCE ADDRESS (Include only if different than Item 14.)

CODE

FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)

20b. SIGNATURE

20c. OFFER DATE

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

22. AMOUNT

23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN
(4 copies unless otherwise specified)ITEM
See Schedule25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES
CODE AT☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()

26. ADMINISTERED BY

27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.

☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN
(Type or print)

31a. NAME OF CONTRACTING OFFICER (Type or print)

30b. SIGNATURE

30c. DATE

31b. UNITED STATES OF AMERICA

31c. DATE

BY

TABLE OF CONTENTS:

Section B- Supplies or Services and Prices/Costs	4
Section C- Description/Specifications/Work Statement	5
Section D- Packaging and Marking.....	7
Section E- Inspection and Acceptance Terms.....	8
Section F- Delivery or Performance	8
Section G- Contract Administration Data	10
Section H- Special Contract Requirements Delivery or Performance	12
Section I – Contract Clauses	17
Section J- List of Documents, Exhibits, and other Attachments	23
Section K – Representations, Certifications, and Other Statements of Offerors	24
Section L – Instructions, Conditions and Notice to Offerors	24
Section M –Evaluation Factors for Award	29

Section B- Supplies or Services and Prices/Costs

Section B.1

The Government Publishing Office seeks a firm fixed price contract that will finalize and implement a coordinated design to renovate the area on the fifth (5th) floor of Building B, B543 and the connected rooms. The implementation and design to renovate the area must also establish a new adhesive mixing room with enough open space for a new machine, along with creating a dedicated secure storage room. These renovations are necessary to upgrade the adhesive equipment, which is integral to the production of passports at GPO.

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
0001		Design Phase-QCIM Rooms B543	1	Each
Contract Type: Firm Fixed Price				
		Unit Price		
		Extended Price		
	Description:			
Purchase Requisitions		PR-25-GPO-1382		

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
0002		Construction Phase-QCIM Room B543	1	Each
Contract Type: Firm Fixed Price				
		Unit Price		
		Extended Price		
	Description:			
Purchase Requisitions		PR-25-GPO-1359		

IDC Type: Not Applicable

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
0003		Quality Assurance/Quality Control QCIM Adhesive Room Renovation	1	LT
Contract Type: Firm Fixed Price				
		Unit Price		
		Extended Price		
	Description:			
Purchase Requisitions				

IDC Type: Not Applicable

(End of Section B)

Section C- Description/Specifications/Work Statement

Section C.1 Objectives

The current adhesive mixing room has ducts protruding from the ceiling, preventing the installation of a new mixer to replace the old mixer. The surrounding space is also old, and deterioration is prominent. The Contractor shall create and then implement a design for the space, using the tasks detailed in this SOW as specifications. The end result shall be a refurbished area with new fixtures, new room layout, and an overall increase in usable space, effectively turning underutilized space into a new mixing room and storage area for QCIM. This will provide a better working environment, while also allowing new upgrades to be implemented to the adhesive process.

Section C.2 Scope

C.2.1 Site Conditions

- a.) The space that is proposed for renovating is as follows:
 - i. B543 is currently used as a storage room and is 278 sq. ft.
 - ii. B541 is currently used as the adhesive mixing room and is 209 sq. ft.
 - iii. T251 is currently a nonfunctioning bathroom and is 369 sq. ft.
 - iv. The hallway flooring immediately outside B543 and B541 is 293 sq. ft.

The total square footage of the proposed space is 1149 sq. ft. See attachment Adhesive Room Layout to view the floorplan of the aforementioned rooms and relevant space.
- b.) Lead paint has been detected in all the rooms. See task 4.1 and attachment QCIM B543 Asbestos and Lead Tests for affected areas.
- c.) The proposed layout introduces a new secure storage room, B541A. See attachment QCIM Adhesive Room Conceptual Drawings for a conceptual view of the space. This attachment shall be used solely for a conceptual view of space and shall NOT be used to determine the work to perform or for any other purpose.

Section C.3 Tasks

C.3.1. Abatement

The Contractor shall abate the detected lead paint found in the designated areas. The locations of lead paint in B543: brick wall, block wall, flooring, ceiling, and wood door casing.

- a.) Locations of lead paint in B542: flooring, wall, and ceiling.
- b.) Locations of lead paint in T521: ceramic tile, radiator, and flooring.

C.3.2 Demolition

The Contractor shall demolish and remove any walls, flooring, doors, and furnishings that do not align with the final design of the space, including but not limited to:

- a.) Flooring in B543, B541, T521, and the hallway outside of B541 and B543.
- b.) The wall between B541 and T521.
- c.) Furnishings in T521, such as urinals and bathroom stalls.
- d.) Exhaust line from B541 to east wall of B543.
- e.) The sliding doors of B543 and B541, along with the door to T521.
- f.) Any items from the walls and ceilings that do not adhere to the final design.

C.3.3 Architecture

The Contractor shall install the appropriate infrastructure according to the final design, including but not limited to:

- a.) Replacing the demoed floors with leveled concrete and providing it with a polished finish to prevent wear and damage.
- b.) New 1.5 in. doors ~~for B541 and~~ the new secure storage room B541A that ~~are~~ is compatible with wall-mounted card readers. ~~Both doors have height requirements to allow forklift access to spaces.~~
- c.) Mechanical sliding door for the new mixer room ~~and B541 storage room~~ with a wall-mounted card reader ~~and vision lite. It must match existing height of opening to allow forklift access.~~ Both sliding door heights must allow forklift access.
- d.) Floor drain for a shower and eye wash station in B543.
- e.) Installing B541A wall.

C.3.4 Mechanical

The Contractor shall install all of the appliances that adhere to the final design, including but not limited to:

- a.) Exhaust fan in B543.
- b.) Sink in B543.
- c.) Stainless steel exhaust ducts and exhaust hood, connected to existing ducts located in B520.
- d.) ~~Auxiliary heating source(s) for the entire space.~~

C.3.5 Electrical

The Contractor shall install and ensure that power is connected to the appliances that adhere to the final design, including but not limited to:

- a.) 120V strip outlets.
- b.) Pendent ceiling-hung LEDs throughout the entire space.
- c.) Laboratory Fume Hood, along with all of its required fixtures.
- d.) Security cameras that adhere to GPO Physical Security's standards.
- e.) ~~Request to Exit installed on the exit side of the B541A secure storage door.~~
- f.) ~~For sliding doors, a locking mechanism shall be installed with a method to release the door from the inside. Details to be determined during design.~~

C.3.6 Fire and Safety

The Contractor shall install and ensure that the entire space is adequately equipped with fire safety according to the final design, including but not limited to:

- a.) Smoke detectors and sprinklers, consistent with the building's present EST3 standard.
 - i. The Contractor is not responsible for independently supplying the smoke detectors to be used in the space and will instead coordinate with GPO's Fire Guard to fulfill this need.
 - ii. The Contractor shall establish connections between the smoke detectors and the databox. The Contractor must ensure that all the hardware is functional and in good condition.
 - iii. The Contractor shall leave the smoke detectors as a dead dataline. The Contractor is not responsible for programming the fire detectors into the fire detection network.
 - iv. The Contractor shall replace sprinkler head with new upright heads.

C.3.7 Key Personnel

~~Proposed key personnel must clearly demonstrate appropriate level of depth and breadth of relevant knowledge, education, and skills to fully function independently with minimum supervision. Key personnel are essential to the work being performed. The education, experience, and capabilities of key personnel will be evaluated to determine the degree to which they possess the qualifications to perform their proposed duties under the contract. Offerors must provide proof of adequate and qualified personnel for each category described in the Statement of Work. This includes, in resume format, responsibilities, technical competencies, credentials, experience, and education. A clear organizational structure should be outlined, demonstrating how key personnel will be managed throughout the project. Experience with the design and construction of similarly sized spaces for office and medical work are desired. Disciplinary diversity (architectural, mechanical, electrical engineering) among the key personnel is also desired. It is required that the Site Safety and Health Officer be single-hatted. The other key personnel roles may be dual-hatted. The Government will evaluate the following key personnel for this solicitation:~~

•**Project Manager**

Responsibilities	Oversees the project from start until completion. Provides overall leadership and direction. Ensures schedule, budget, and contract compliance. Acts as primary liaison with the Government
Minimum Experience	Ten (10) Years
Minimum Education	Bachelor's degree in Engineering, Architecture, Construction, Project Management, or a related field. Waived for 15 years of experience in a similar role.

•**Superintendent**

Responsibilities	Oversees and manages third-party contractor construction activities. Serves as the primary point of contact between project stakeholders. Maintains the project schedule and ensures that work is completed on time.
Minimum Experience	Five (5) Years
Minimum Education	Bachelor's degree in Engineering, Architecture, Construction, Project Management, or a related field. Waived for 10 years' experience in a similar role.

•**Quality Control Lead**

Responsibilities	Works with COR and third-party contractors to ensure all work conforms to the contract requirements including workmanship, materials, and equipment. Manages coordination of inspections and ensures appropriate team members are on site during each definable feature of work.
Minimum Experience	Five (5) Years
Minimum Education	Bachelor's Degree in Engineering, Architecture, Construction, Project Management, or a related field. Waived for 10 years' experience in a similar role.

•**Site Safety and Health Officer**

Responsibilities	Performs safety inspections of third-party contractor constructions activities. Document and review compliance with safety standards and ensure safe work practices.
Minimum Experience	Five (5) Years
Minimum Education	Bachelor's degree in occupational health or a related field. Waived for 10 years' experience in the Construction Safety Field

(End of Section C)

Section D- Packaging and Marking

(End of Section D)

Section E- Inspection and Acceptance Terms

(End of Section E)

Section F- Delivery or Performance

Section F.1 Miscellaneous

The Contractor shall paint all of the walls, ceilings, and sprinkler pipes in the space according to the final design.

Task Number	Work Milestones	Projected Completion Date
F.1	Entire space has been abated	1 week after abatement process begins
F.2	Entire demolition of space according to the final design	2 weeks after demolition process begins
F.3	New concrete is poured and leveled over the entire space	3 days after concrete pouring begins
	New concrete flooring has been polished with a finish	6 weeks after concrete has been poured and leveled
F.4	Exhaust ducts and hood are installed and connected to relevant existing ducts	2 weeks after installation process begins
F.5	New lighting is installed and connected to power for the entire space	2 weeks after installation process begins
F.6	Smoke detectors are installed for the entire space	1 week after installation process begins
F.7	All ceilings, walls, and sprinklers are painted	2 weeks after painting process begins

Section F. 2 Place of Performance

The services shall be performed at GPO building B's 5th floor, located at 732 N. Capital St. NE, Washington, DC 20002.

Section F.3 Period of Performance

During the process of the work, the CO and COR will conduct periodic reviews with The Contractor to review progress. The Contractor must perform and submit the work required within the limits of the following schedule.

Predesign Meeting with GPO staff	Day 0
Technical Kickoff Meeting	+7 days, Day 7

Design Submit 35% Conceptual Design Development (DD) Review Package	+45 days, Day 52
GPO Review	+7 days, Day 59
Design Submit 65% DD Review Package	+30 Days, Day 89
GPO Review	+7 Days, Day 96
Design Submit 95% DD Review Package	+30 days, Day 126
GPO Review	+7 days, Day 133
Submit 100% Construction Document (CD) Review Package	+15 days, Day 148
Administrative NTP for contracts, submittals and long lead items	+60 days, Day 208
Construction NTP and Multi-Phased Construction	+100 days, Day 308
QA/QC of Construction, Substantial Completion, and Punchlist Review	+21 Days, Day 329

Section F.4 Timeline

All work to be completed within 47 weeks (329 days) of the Notice to Proceed (NTP). Submission of Design timeline, safety plans, quality control plan, schedules, pre-construction submittals, etc. shall be required to be submitted within 14 days of the Construction NTP.

Section F.5 Completion

Upon completion of work, the Contractor is responsible for any punch list items accrued during the final walkthrough by the COR. This contract will not be fulfilled until all items are addressed in a timely manner, inspected by the COR, and have written approval.

Section F.6 Before Notice to Proceed (NTP)

Contractor shall submit a Critical Path Method (CPM) schedule for both the Design and Construction phase with estimated dates and itemized cost of work to the Contracting Officer for review and approval before NTP. An updated schedule is required to be included in the monthly invoices. The Contractor must provide 100% drawings in AutoCAD/Revit and pdf.

Section F.7 Work Hours

Work will be performed during normal business hours, 7:00 AM until 3:00 PM. Coordinate working schedule with the COR prior to beginning construction. Any work to be performed outside of normal business hours and on weekends or holidays will need to be coordinated with the COR three (3) days prior.

Federal Holidays in 2026:

New Year's Day	January 1
Martin Luther King's Birthday	January 19
President's Day	February 16
Memorial Day	May 25
Juneteenth	June 19

Independence Day	July 3
Labor Day	September 7
Columbus Day	October 12
Veteran's Day	November 11
Thanksgiving Day	November 26
Christmas Day	December 25

(End of Section F)

Section G- Contract Administration Data

CONTRACT MANAGEMENT

Notwithstanding the Contractor's responsibility for total management responsibility during the performance of the contract, the administration of the contract will require maximum coordination with the GPO points of contact during performance of the contract.
CONTRACTING OFFICER (CO), CONTRACTING SPECIALIST AND CONTRACTING OFFICER'S REPRESENTATIVE (COR)

Troy White, Contracting Officer
U.S. Government Publishing Office Agency Acquisition
Room: A530
Address: 732 North Capitol St NW Washington DC 20401
twhite@gpo.gov

Brittany Freeman, Contract Specialist
U.S. Government Publishing Office Agency Acquisition
Address: 732 North Capitol St NW Washington DC 20401
bfreeman@gpo.gov

Contracting Officer's Representative (COR): Chrisitan Clarke
cclarke@gpo.gov

Technical Point of Contact: TBD

GPO will designate one or more persons as the Contracting Officer's Technical Representative (COR). The COR may be changed at any time by GPO without prior notice to the Contractor, through a unilateral modification to the contract.

An administrative letter issued by the Contracting Officer which designates the COR will be provided separately to the Contractor.

CONTRACTING OFFICER'S AUTHORITY

The Contracting Officer is the only person authorized to make or approve any changes in any of the requirements of this contract and notwithstanding any provisions contained elsewhere in this contract, the said authority remains solely the Contracting Officer's. In the event the Contractor makes any changes at the direction of any person other than the Contracting Officer, the change will be considered to have been made at the contractor's risk. No adjustment will be made in the contract terms and conditions of this contract, including price.

CONTRACTING OFFICER'S REPRESENTATIVE (COR)

The COR is responsible for the technical aspects of the project and serves as technical liaison with the Contractor.

The COR is also responsible for the final inspection and acceptance of all products, services, reports, and such other responsibilities as may be specified in this contract. The COR is not authorized to make any commitments or otherwise obligate the GPO or authorize any changes, which affect the Contract price, terms or conditions. Any Contractor request for changes shall be referred to the Contracting Officer directly or through the COR. No such changes shall be made without the expressed prior authorization of the Contracting Officer.

If the Contractor performs a service that alters the current cost, quantity, or scope without prior written approval from the CO, the Contractor does so at his/her own risk. The COR may designate assistant COR(s) to act for the COR by naming such assistant(s) in writing and transmitting a copy of such designation through the Contracting Officer to the Contractor.

The COR is not authorized to make any commitments or otherwise obligate the GPO or authorize any changes, which affect the quantity, quality, scope or Contract price. All requests for changes shall be referred to the Contracting Officer directly or through the COR. No such changes shall be made without the expressed prior authorization of the Contracting Officer. If the Contractor performs a service that alters the current cost, quantity, or scope without prior written approval from the CO, the Contractor does so at his/her own risk. The COR may designate an alternate COR(s) to act for the COR by naming such alternate(s) in writing and transmitting a copy of such designation through the Contracting Officer to the Contractor. Invoices shall be paid in accordance with the contract terms and conditions, following receipt of a proper invoice under Part 3 of these instructions. Please note that the Prompt Pay Act (31 USC Chapter 39) does not apply to GPO.

Payments under this contract will be made by the GPO by electronic funds transfer (EFT). For additional information and questions please send an email to InvoiceGPO@gpo.gov.

The Contractor shall submit each invoice electronically via email to the following address invoicegpo@gpo.gov.

System for Award Management (SAM), formerly Central Contractor Registration (CCR) registration is required for all vendors doing business with the federal government with some exceptions. For mailing in invoices, use the following GPO s address:

US Government Publishing Office (GPO) Office of Finance Mail Stop FMCE North Capitol & H Streets, NW Washington, DC 20401, Phone (202) 512 0874

- I. Effective January 1, 1999, payments on all GPO purchase orders will only be made by electronic fund transfer (EFT) unless you are granted a waiver. A waiver can only be granted if you certify below in writing that you do not have an account with a financial institution or an authorized payment agent and return the certification to the Contracting Officer. If it is determined that the amount billed is incorrect, the invoice may be rejected by the Government, or the contractor may be required to submit a revised invoice.

NOTICE The following solicitation provisions and/or contract clauses pertinent to this section are hereby incorporated by reference Materials Management Acquisition Regulation (MMAR) 52.232 34 Payment by Electronic Funds Transfer Central Contractor Registration (May 1999)

- II. To constitute a proper invoice, each invoice must include the following information and/or attached documentation.

- a. Name, address and telephone of the Contractor, and
- b. Date of invoice and invoice number
- c. Contract number (Delivery or Task Order, if applicable) complete numbers (including task order or call number and contract line item(s)) and also modification number, if applicable. All relevant information to the invoice that the contract contains must be reflected on the invoice.
- d. Description (quantity, unit of measure, unit price, and extended price) of the supplies or services rendered (including hours incurred and billing rate, as applicable to the contract). All relevant information that the contract contains must be reflected on the invoice.
- e. Name, title, phone number, email and mailing address of person to notify in the event of a defective invoice.
- f. A schedule depicting the following information.
 - Amount Invoiced the Total Amount of Invoice and this Invoice Period separated by each CLIN Number (if applicable)
 - Total contract Price and price for each CLIN
 - Cumulative Amount Invoiced and Authorized Value of Contract Balance Remaining on Contract
 - If the contractor is billing for prices/costs incurred over more than a single month, the prices/costs for each month in which the costs were incurred and shall be segregated into the month they were actually incurred.
- g. Add all payment terms and related discount items on the invoice per the contract payment method and clauses.
- h. Name of Contracting Officer's Representative (COR) and
- i. Signature of authorized representative of the firm with the following invoice certification

The undersigned hereby certifies to the best of my knowledge and belief that the sum claimed under this contract is proper and due, and all the prices/costs of contract performance have been paid or to the extent allowed under the applicable payment clause will be paid by the Contractor when due in the ordinary course of

business, the work reflected by these costs has been performed, and amounts involved are consistent with the requirements of this Contract.

BY NAME _____

TITLE _____

DATE _____

III. In the event the contractor owes money to GPO, the contractor shall clear the amount owed to GPO first before any new invoices will be processed and paid. The contractor shall send a refund check to GPO to the address above and provide GPO with the tracking information.

IV. Inquiries regarding the status of invoices may be directed to invoicegpo@gpo.gov

MERGERS, ACQUISITIONS, NOVATIONS, AND CHANGE-OF-NAME AGREEMENTS

In accordance with MMAR 42.12, if a contractor merges, is acquired, or recognizes a successor in interest to Government contracts when contractor assets are transferred; or, recognizes a change in a contractor's name; or, executes novation agreements and change-of-name agreements, the contractor shall notify the CO and provide a copy of the novation or other any other agreement that changes the status of the contractor.

Title 41 U.S.C. 6305 prohibits the transfer of Government contracts from an awardee to a third party. However, the Government may, when in its interest, novate an awardee's contract to a third party when there is a transfer of all of the awardee's assets or the entire portion of the assets involved in the performance of the contract.

For a novation to be approved by the CO, the following elements shall occur:

- a. The company shall submit a novation agreement with all the required legal elements in accordance with MMAR 42.12.
- b. The novation agreement shall include the transfer of personnel performing work under the contract and any awarded delivery orders, as applicable.
- c. The novation agreement shall be determined by the CO to be in the best interest of the Government.

(End of Section G)

Section H- Special Contract Requirements Delivery or Performance

H.1 KEY PERSONNEL

Certain experienced professionals and/or technical personnel are essential for successful accomplishment of the work to be performed under this contract. Such personnel are defined as "Key Personnel" and are those persons whose resumes were submitted for evaluation of the proposal. The contractor agrees that such personnel shall not be removed from the contract or replaced without compliance with the following:

- a) The personnel specified under this contract are essential to the work the contractor agrees to perform hereunder be essential to the work. The contractor agrees that personnel may not be removed from the contract work or replaced without compliance with paragraphs (b) and (c) of this section.
- b) If one or more of the key personnel, for whatever reason, becomes, or is expected to become, unavailable for work under this contract for a continuous period exceeding 30 work days, or is expected to devote substantially less effort to the work than indicated in the proposal or initially anticipated, the contractor shall immediately notify the Contracting Officer and shall, subject to the concurrence of the contracting officer, promptly replace the personnel with personnel of at least substantially equal ability and qualifications. Personnel must be replaced within 30 days of the contractor leaving the Agency. This substitution must be pre-vetted and able to pass through our background check by our Security Services unit. Incumbents must be able to obtain a public trust clearance.
- c) Each request for approval of substitutions must be in writing and contain a detailed explanation of the circumstances necessitating the proposed substitutions. The request must also contain a complete resume for the proposed substitute and other information requested or needed by the contracting officer to evaluate the proposed substitution. The Contracting Officer and the Contracting Officer's Representative shall evaluate the contractor's request, and the contracting officer shall promptly notify the contractor of his or her decision in writing.
- d) If the Contracting Officer determines that suitable and timely replacement of key personnel who have been reassigned, terminated, or have otherwise become unavailable for the contract work is not reasonably forthcoming, or that the resultant reduction of productive effort would be so substantial as to impair the successful completion of

the contract or the service order, the contract may be terminated by the contracting officer for default or for the convenience of the Government, as appropriate. If the Contracting Officer finds the contractor at fault for the condition, the contract price or profit/fixed fee may be equitably adjusted downward to compensate the Government for any resultant delay, loss, or damage.

The Key Personnel Positions under this contract are:

Key Personnel Positions	Quantity	Names
Project Manager	1	TBD
Superintendent	1	TBD
Quality Control Lead	1	TBD
Safety Lead	1	TBD

CONTRACTOR'S EMPLOYEES' IDENTIFICATION AND GOVERNMENT CONTRACTOR RELATIONS

- a. All contractor personnel, when attending meetings, sending emails, or participating on telephone calls shall identify themselves as contractor personnel. Identification in meetings and on Microsoft Teams shall be at the beginning of the call or meeting to allow government personnel to excuse contractors if appropriate.
- b. Contractor personnel shall identify themselves with their company name in the signature block of emails.
- c. Pursuant to MMAR 7.5, the contractor shall not perform any inherently governmental actions under this contract. No contractor employee shall hold him or herself out to be a government employee, agent, or representative. No contractor employee shall state orally or in writing at any time that he or she is acting on behalf of the Government. No Employer-employee relationship exists of will exist under this Contract. Contractor's employees shall not:
 - i. Be placed in a position where they are under the supervision, direction, or evaluation of a government employee.
 - ii. Be placed in a position of command, supervision, administration or control over Government personnel, or over personnel of other contractors under other GPO's contracts or become a part of the Government organization.
 - iii. Be used in administration or supervision of Government procurement activities.
- d. The services to be performed under this contract do not require the contractor of his employees to exercise personal judgment and discretion on behalf of the Government. Rather, contractor personnel will act and exercise personal judgment and discretion on behalf of the contractor.

(H.2) INSURANCE

Neither GPO nor the US Government shall in any event be liable or responsible for any damage or injury to any person or property occasioned by the actions of the Contractor or Contractor's employees in performing under this contract. The Contractor must maintain adequate insurance with the proper coverage limits, including general liability and professional liability insurances, and others if needed, during the term of this contract, insuring the contractor against any claims for injury or damage.

(H.3) DISSEMINATION OF INFORMATION

There shall be no dissemination or publication, except within and between the Contractor and any Subcontractors, of information developed under this contract or contained in the reports to be furnished pursuant to this contract without prior written approval of the Contracting Officer and Contracting Officer's Representative(s). Language similar to this provision shall be included in all subcontracts to this contract. This provision includes news releases: blogs, posts, and published papers.

(H.4) NOTIFICATION OF DEBARMENT/SUSPENSION STATUS

The Contractor shall provide written notice to the Contracting Officer within ten (10) calendar days of being suspended, debarred, or declared ineligible by any Department or other Federal Agency, or upon receipt of a notice of proposed debarment during the performance of this contract.

(H.5) CONSENT TO SUBCONTRACTS (if applicable)

In accordance with Contract MMAR clause 52.244 2, Subcontracts, the Contracting Officer consents to award of subcontracts as proposed in the Contractor's proposal, which resulted in the award of this Contract to the following firms for the products or services specified here:

Contractor Name Services to be Performed: TBD

The Contractor must request Contracting Officer consent and submit the information required by the aforementioned clause for any subcontracts requiring consent not listed here. If the Contractor has an approved contracting system, they must follow MMAR 52.244 2 requirements for a Contractor with an approved contracting system after providing evidence of their approved contracting system to the Contracting Officer.

Subcontract means any contract, as defined in FAR Subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contractor a subcontract. It includes but is not limited to: awards and notices of awards; job orders or task letters issued under basic ordering agreements; letter contracts; orders, such as purchase orders, under which the contract becomes effective by written acceptance or performance; and bilateral contract modifications.

(H.6) CONTRACTOR S PERSONNEL BUSINESS ETHICS AND CONDUCT

In accordance with MMAR 52.203 13, the Contractor shall exercise due diligence on personnel to be engaged under this contract.

(H.7) CONFLICTS OF INTEREST

- a. It is understood and agreed that some of the work required hereunder may place the Contractor, or its personnel or its subcontractors or their personnel (hereinafter referred to collectively as Contractor), in the position of having a potential personal or organizational conflict of interest (OCI), i.e., because of other activities or relationships with other persons, (1) the Contractor is unable or potentially unable to render impartial assistance or advice; or (2) the Contractor objectivity in performing the Contract is or might be impaired; or (3) the Contractor may receive an unfair competitive advantage; or (4) the Contractor may have a financial or other personal interest which would or potentially would impair his/her objectivity and/or from which he/she would improperly benefit. Further discussion of OCIs may be found in MMAR 9.5.

The performance/actions of personnel under this Contract will be imputed to the Contractor (or subcontractor) by whom they are employed or retained, and the performance/actions of any subcontractor will be imputed to the Contractor, unless the Contractor, on a case-by-case basis, can demonstrate otherwise and satisfy the Contracting Officer that such imputation is unreasonable.

- b. If it is discovered that the Contractor engaged in any activities which constitute a potential or actual conflict without having first obtained the Contracting Officer s approval to undertake such activities; or if it is subsequently discovered that, notwithstanding the Contracting Officer s authorization to undertake the activity based on his/her initial determination that no significant potential conflict existed or appeared to exist, a conflict did, in fact exist or arise, restrictions, as permitted by MMAR 9.5, on the Contractor future activities may be placed unilaterally by the Contracting Officer for this contract or the Contracting Officer for such other contract as may be involved in the conflict, and other remedies (including termination of this contract for default, debarment or suspension, and those permitted by the clauses of this contract entitled Cancellation, Rescission and Recovery of Funds for Illegal or Improper Activity (MMAR 52.203 8) and Price or Fee Adjustment for Illegal or Improper Activity [MMAR 52.203 10]), may be taken by GPO.

(H.8) RESTRICTIONS AGAINST DISCLOSURE

The Contractor agrees, in the performance of this contract, to keep the information furnished by the Government or acquired/developed by the Contractor in performance of the contract and designated by the Contracting Officer or Contracting Officer s Representative, in the strictest confidence. The Contractor also agrees not to publish or otherwise divulge such information, in whole or in part, in any manner or form, nor to authorize or permit others to do so, taking such reasonable measures as are necessary to restrict access to such information while in the Contractor's possession, to those employees needing such information to perform the work described herein, i.e., on a need to know basis. The Contractor agrees to immediately notify the Contracting Officer in writing in the event that the Contractor determines or has reason to suspect a breach of this requirement has occurred.

All Contractor staff working on any of the described tasks may, at Government request, be required to sign formal non-disclosure and/or conflict of interest agreements to guarantee the protection and integrity of Government information and documents.

The Contractor shall insert the substance of this special contract requirement, including this paragraph (c), in all subcontracts when requiring a restriction on the release of information developed or obtained in connection with the performance of the contract.

(H.9) PROTECTION OF PROPERTY

Contractor Responsibility. If due to the default, negligence (whether of action or omission) and/or dishonesty of the Contractor or its employees, any Government-owned or controlled property is lost or damaged as a result of the Contractor's performance of this contract, the Contractor shall be responsible to the Government for such loss or damage, and the Government at its option, may, in lieu of payment therefore, require the Contractor to replace at its own expense, all property lost or damaged. The Contractor shall protect materials in his custody against the transportation, fire, theft, weather, and other hazards avoidance in the exercise of the "highest degree of care."

(H.10) STANDARDS OF CONDUCT

- a. When the Contractor is onsite at a federal building, the Contractor shall be responsible for maintaining satisfactory standards of employee competency, conduct, appearance, and integrity. Each employee or supervisor of the Contractor is expected to adhere to the rules associated with that federal building, and to adhere to standards of behavior that reflect credit on themselves, their employer, and the Federal Government.
- b. The Contractor shall be responsible for taking such disciplinary action, including suspension without pay or removal from the worksite, with respect to its employees, as may be necessary to enforce those standards.
- c. Where applicable, the requirements of this clause shall be expressly incorporated into subcontract(s) and shall be applicable to all Sub-Contractor employees who may perform services or work at the federal building and grounds of this contract.

(H.11) COOPERATION WITH OTHER ON-SITE CONTRACTORS

When the Government undertakes or awards other contracts for additional work at the facilities, the Contractor shall:

- a. Fully cooperate with the other Contractors and Government employees, and
- b. Carefully fit its own work to such other additional contracted work as may be directed by the Contracting Officer's Representative (COR). The Contractor shall not commit or permit any act which shall interfere with the performance of work awarded to another Contractor or with the performance of other Government employees.
- c. In any case where, in the course of fulfilling the contract requirements, the Contractor disturbs any work guaranteed under another separate contract, the Contractor shall restore such disturbed work to a condition satisfactory to the COR and guarantee such restored work to the same extent as it was guaranteed under the applicable other contract.

(H.12) WORK ON A GOVERNMENT INSTALLATION

In performing onsite work under this contract on a Government installation or in a Government building, the Contractor shall:

- a. Conform to the specific safety requirements established by the contract.
- b. Comply with the safety rules of the Government installation that concern related activities not directly addressed in this contract.
- c. Take all reasonable steps and precautions to prevent accidents and preserve the life and health of Contractor and Government personnel connected in any way with performance under this contract.
- d. Take such additional immediate precautions as the Contracting Officer or Contracting Officer's Representative (COR) may reasonably require for safety and accident prevention purposes.
- e. Conform to all required security requirements.

(H.13) CONTRACTOR ACCESS AND SECURITY REQUIREMENTS FOR THIS CONTRACT

The performance of this contract requires employees of the prime contractor or its subcontractors, affiliates, consultants, or team members ("contractor employees") to have access to and to the extent authorized, mobility within, a GPO facility.

GPO may close and or otherwise deny contractor employees access to a GPO facility for a portion of a business day or longer for various reasons including, but not limited, to the following events:

- a. Federal public holidays for Federal employees in accordance with 5 U.S.C. 6103; Fires, floods, earthquakes, and unusually severe weather, including but not limited to snowstorms, tornadoes, and hurricanes; Occupational safety or health hazards; Lapse in Appropriations; or Federal Statute, Executive Order, Presidential Proclamation, or any other unforeseen reason. In such events, the contractor employees may be denied access to a GPO facility that is ordinarily available for the contractor to perform work or make delivery, as required by the contract.
- b. In all instances where contractors are denied access or required to vacate a GPO facility, part or in whole, the contractor shall be responsible for ensuring contractor personnel working under the contract comply. If the circumstances permit, the contracting officer will provide direction to the contractor, either directly or through the Contracting Officer's Representative (COR), which could include continuing on-site performance during the GPO facility closure period; however, if Government oversight is required and is not available, on-site performance shall not be allowed. In the absence of such direction, the contractor shall exercise sound judgment to minimize unnecessary contract costs and performance impacts, for example, performing required work off-site if possible or reassigning personnel to other activities if appropriate.

The contractor shall be responsible for monitoring the Office of Personnel Management at opm.gov, the local radio, television stations, GPO web sites, and other communication channels. Once the facility is accessible, the contractor shall resume contract performance as required by the contract.

For the period that GPO facilities were not accessible to contractors who required access in order to perform the services, the contracting officer may—Adjust the contract performance or delivery schedule for a period equivalent to the period the GPO facility was not accessible; Forego the work; or reschedule the work by mutual agreement of the parties. Notification procedures of a GPO facility closure, including contractor denial of access, are as follows:

The contractor shall be responsible for notification of its employees of the GPO facility closure to include denial of access to the GPO facility. The dismissal of GPO employees in accordance with statute and regulations providing for such dismissals shall not, in itself, equate to a GPO facility closure in which contractors are denied access. Moreover, the leave status of GPO employees shall not be conveyed or imputed to contractor personnel. Accordingly, unless the GPO facility is closed and the contractor is denied access to the facility, the contractor shall continue performance in accordance with the contract.

- a. Access to Government facilities and resources, including equipment and systems, will be limited and personnel necessary to administer contract performance may not be available. Generally, supply and service contracts that are funded beyond the date of the lapse in appropriation and do not require access to Government facilities, active administration by Government personnel or the use of Government resources in a manner that would cause the Government to incur additional obligations during the lapse in appropriation may continue. If a delivery date for a contract falls during the period of a lapse in appropriations, Government personnel may not be available to receive delivery.

Contractors are directed to consult with a contracting officer before attempting to make a delivery. Contracting officers will be available throughout the lapse in appropriation period to provide guidance.

- b. Once OMB guidance is given, CORs, in consultation with the contracting officer, will notify those contractors that are deemed by the Program Office to be performing excepted work and identify the contractor personnel requiring access to GPO facilities. CORs will also coordinate directly with facility management or physical security personnel at respective locations to ensure that the names of contractor personnel requiring access to Government facilities during the lapse in appropriations are provided to physical security personnel.
- c. Contractors who are not designated as performing excepted work are not allowed access to Government facilities or to utilize Government resources in a manner that would incur any additional obligation of funding on behalf of the Government during the lapse in appropriation.
- d. All contractors working on this contract must undergo fingerprinting and background checks. This includes all subcontractors.
- e. All contractors will be required to pass through metal detectors and all backpacks, toolboxes/bags, lunch boxes etc. will be subject to inspection.
- f. All contractors will be required to exchange their government approved ID badge for a contractor access badge at the beginning of their work shift. Contractors will not be allowed to leave the building with their access badges under any circumstances. Contractors will exchange their access badges for their personal IDs at the end of their workday or any time a contractor leaves the building.

(End of Section H)

Section I – Contract Clauses

REGULATIONS GOVERNING PROCUREMENT

The U.S. GPO is a legislative branch of the United States Government. Accordingly, the Federal Acquisition Regulations (FAR) is not applicable to this and all GPO procurements. The Contractor should note that only those provisions of the Materials Management Acquisition Regulations (MMAR) which are specifically incorporated by reference into this solicitation are applicable.

The following Contract clauses pertinent to this section are hereby incorporated by reference (by Citation Number, Title, and Date) in accordance with the clause at MMAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE in Section I of this Contract.

Full text of incorporated MMAR clauses may be accessed electronically at:

<https://www.gpo.gov/docs/default-source/forms-and-standards-files-for-vendors/mmar.pdf?sfvrsn=2>

Clauses incorporated by reference:

Article Number	Reference Text
52.216-4	52.216-4 Economic Price Adjustment-Labor and Material (JAN 2017)
52.223-18	52.223-18 Encouraging Contractor Policy to Ban Text Messaging While Driving (AUG 2011)
52.223-6	52.223-6 Drug-Free Workplace (MAY 2001)
52.242-15	52.242-15 Stop-Work Order (AUG 1989)
52.222-6	52.222-6 Construction Wage Rate Requirements (MAY 2014)
52.211-5	52.211-5 Material Requirements (AUG 2000)
52.236-5	52.236-5 Material and Workmanship (APR 1984)
52.245-1	52.245-1 Government Property (Jan 2017)

Clauses incorporated by full text:

52.212-4 Contract Terms and Conditions - Commercial Items (FEB 2002)

(a) *Inspection / Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance.

The Government may require repair or replacement of nonconforming supplies or re-performance of nonconforming services at no increase in contract price. The Government must exercise its post-acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C.3727). However, when a third party makes payment (e.g., use of the Government-wide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) *Changes.* Changes in the terms and conditions of this contract may be made only by written

agreement of the parties.

(d) *Disputes.* Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at MMAR 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) *Definitions.* The clause at MMAR 52.202-1, Definitions, is incorporated herein by reference.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) *Invoice.* (1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices.

An invoice must include--

- (i) Name and address of the Contractor;
- (ii) Invoice date and number;
- (iii) Contract number, contract line item number and, if applicable, the order number;
- (iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;
- (v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading; Terms of any discount for prompt payment offered;
- (vi) Name and address of official to whom payment is to be sent;
- (vii) Name, title, and phone number of person to notify in event of defective invoice; and
- (viii) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.
- (ix) Electronic funds transfer (EFT) banking information.

The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(A) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds

Transfer--Central Contractor Registration, or 52.232-34, Payment by Electronic Funds Transfer--Other Than Central Contractor Registration), or applicable agency procedures.

(B) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(j) *Risk of loss.*

(k) Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

- (1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or
- (2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(l) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(m) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(n) *Termination for cause.* The Government may terminate this contract, or any part here of, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(o) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(p) *Warranty.* The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(q) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(r) *Other compliances.* The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(s) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. 327, *et seq.*, Contract Work Hours and Safety Standards Act; 41 U.S.C. 51-58, Anti-Kickback Act of 1986; 41 U.S.C. 265 and 10 U.S.C. 2409 relating to whistleblower protections; 49 U.S.C. 40118, Fly American; and 41 U.S.C. 423 relating to procurement integrity.

(t) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services.
- (2) The Assignments, Disputes, Payments, Invoice, Other Compliances, and Compliance with Laws Unique to Government Contracts paragraphs of this clause.
- (3) The clause at 52.212-5.
- (4) Addenda to this solicitation or contract, including any license agreements for computer software.
- (5) Solicitation provisions if this is a solicitation.
- (6) Other paragraphs of this clause.
- (7) The Standard Form 1449.
- (8) Other documents, exhibits, and attachments.

(9) The specification.

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Items (MAY 2002)

(1) The Contractor shall comply with the following MMAR clauses, which are incorporated in this contract by reference, to implement provisions of law or executive orders applicable to acquisitions of commercial items: 52.222-3, Convict Labor (E.O. 11755).

(2) 52.233-3, Protest after Award (31 U.S.C. 3553).

(b) The Contractor shall comply with the MMAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items or components:

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government, with Alternate I (41 U.S.C. 253g and 10 U.S.C. 2402).

☐ (2) 52.222-21, Prohibition of Segregated Facilities (Feb 1999)

☒ (4) 52.222-35, Equal Opportunity for Special Disabled Veterans, Veterans of the Vietnam Era, and Other Eligible Veterans (38 U.S.C. 4212)

☒ (5) 52.222-36, Affirmative Action for Workers with Disabilities (29 U.S.C. 793).

☒ (6) 52.222-37, Employment Reports on Special Disabled Veterans, Veterans of the Vietnam Era, and Other Eligible Veterans (38 U.S.C. 4212).

☒ (7) 52.222-19, Child Labor-Cooperation with Authorities and Remedies.

☐ (8)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Products (42 U.S.C. 6962(c)(3)(A)(ii)).

☐ (ii) Alternate I of 52.223-9 (42 U.S.C. 6962(i)(2)(C)).

☐ (9) 52.225-1, Buy American Act-Supplies (41 U.S.C. 10a - 10d).

☐ (10)(i) 52.225-3, Buy American Act-North American Free Trade Agreement-Israeli Trade Act (41 U.S.C. 10a- 10d, 19 U.S.C. 3301 note, 19 U.S.C. 2112 note).

☐ (ii) Alternate I of 52.225-3.

☐ (iii) Alternate II of 52.225-3.

☐ (11) 52.225-5, Trade Agreements (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

☐ (12) 52.225-13, Restriction on Certain Foreign Purchases (E.O. 12722, 12724, 13059, 13067, 13121, and 13129).

☐ (13) 52.225-15, Sanctioned European Union Country End Products (E.O. 12849).

☐ (14) 52.225-16, Sanctioned European Union Country Services (E.O. 12849).

☒ (15) 52.232-33, Payment by Electronic Funds Transfer-Central Contractor Registration (31 U.S.C. 3332).

☐ (16) 52.232-34, Payment by Electronic Funds Transfer-Other than Central Contractor Registration (31 U.S.C. 3332).

☐ (17) 52.232-36, Payment by Third Party (31 U.S.C. 3332).

☐ (18) 52.239-1, Privacy or Security Safeguards (5 U.S.C. 552a).

☐ (19) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (46 U.S.C. 1241).

(ii) Alternate I of 52.247-64.

(c) The Contractor shall comply with the MMAR clauses in this paragraph (c), applicable to commercial services, which the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or executive orders applicable to acquisitions of commercial items or components:

☐ (1) 52.222-41, Service Contract Act of 1965, As Amended (41 U.S.C. 351, *et seq.*).

_____(2) 52.222-42, Statement of Equivalent Rates for Federal Hires (29 U.S.C. 206 and 41 U.S.C. 351, *et seq.*).

_____(3) 52.222-43, Fair Labor Standards Act and Service Contract Act-Price Adjustment (Multiple Year and Option Contracts) (29 U.S.C. 206 and 41 U.S.C. 351, *et seq.*)._____(4) 52.222-44, Fair Labor Standards Act and Service Contract Act-Price Adjustment (29 U.S.C. 206 and 41 U.S.C. 351, *et seq.*).

 X (5) 52.222-47, SCA Minimum Wages and Fringe Benefits Applicable to Successor Contract Pursuant to Predecessor Contractor Collective Bargaining Agreement (CBA) (41 U.S.C. 351, *et seq.*).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph.

(e) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, and does not contain the clause at 52.215-2, Audit and Records Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

DISPUTES (GPO Clause June 2008)

(a) This contract is subject to the Contract Disputes Act of 1978, as amended (41 U.S.C. 601-613, and as modified by Section 1501 of Title I of Division H of the Consolidated Appropriations Act, 2008, Public Law No. 110-161).

(b) Except as provided in the Act, all disputes arising under or relating to this contract shall be resolved under this clause.

(c) "Claim," as used in this clause, means a written demand or written assertion by one of the contracting parties seeking, as a matter of right, the payment of money in a sum certain, the adjustment or interpretation of contract terms, or other relief arising under or relating to this contract. However, a written demand or written assertion by the Contractor seeking the payment of money exceeding \$50,000 is not a claim under the Act until certified. A voucher, invoice, or other routine request for payment that is not in dispute when submitted is not a claim under the Act. The submission may be converted to a claim under the Act, by complying with the submission and certification requirements of this clause, if it is disputed either as to liability or amount or is not acted upon in a reasonable time.

(d) (1) A claim by the Contractor shall be made in writing and, unless otherwise stated in this contract, submitted within 6 years after accrual of the claim to the Contracting Officer for a written decision. A claim by the Government against the Contractor shall be subject to a written decision by the Contracting Officer.

(2)(i) The Contractor shall provide the certification specified in paragraph (d)(2)(iii) of this clause when submitting any claim exceeding \$50,000.

(ii) The certification requirement does not apply to issues in controversy that have not been submitted as all or part of a claim.

(iii) The certification shall state as follows: "I certify that the claim is made in good faith; that the supporting data are accurate and complete to the best of my knowledge and belief; that the amount requested accurately reflects the contract adjustment for which the Contractor believes the Government is liable; and that I am duly authorized to certify the claim on behalf of the Contractor."

(3) The certification may be executed by any person duly authorized to bind the Contractor with respect to the claim.

(e) For Contractor claims of \$50,000 or less, the Contracting Officer must, if requested in writing by the Contractor, render a decision within 60 days of the request. For Contractor-certified claims over \$50,000, the Contracting Officer must, within 60 days, decide the claim or notify the Contractor of the date by which the decision will be made.

(f) The Contracting Officer's decision shall be final unless the Contractor appeals, within ninety (90) days of

receipt of a Contracting Officer's decision, to the U.S. Government Accountability Office Contract Appeals Board (GAO CAB), 441 G Street, NW, Room 7182, Washington, DC, 20548; Facsimile: 202-512-9749; E-Mail: CAB@gao.gov.

(g) If the claim by the Contractor is submitted to the Contracting Officer or a claim by the Government is presented to the Contractor, the parties, by mutual consent, may agree to use alternative dispute resolution (ADR). If the Contractor refuses an offer for ADR, the Contractor shall inform the Contracting Officer, in writing, of the Contractor's specific reasons for rejecting the offer.

(h) The Government shall pay interest on the amount found due and unpaid from (1) the date that the Contracting Officer receives the claim (certified, if required); or (2) the date that payment otherwise would be due, if that date is later, until the date of payment. With regard to claims having defective certifications, interest shall be paid from the date that the Contracting Officer initially receives the claim. [A defective certification means a certificate which alters or otherwise deviates from the language in (d)(2)(iii) above, or which is not executed by a person duly authorized to bind the contractor with respect to the claim. Failure to certify shall not be deemed to be a defective certification.] Simple interest on claims shall be paid at the rate, fixed by the Secretary of the Treasury as provided in the Act, which is applicable to the period during which the Contracting Officer receives the claim and then at the rate applicable for each 6-month period as fixed by the Treasury Secretary during the pendency of the claim.

(i) The Contractor shall proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal, or action arising under the contract, and comply with any decision of the Contracting Officer.

(j) This contract clause, Disputes (GPO Clause June 2008), cancels and supersedes the contract clause, MMAR Dispute 52.233-1 (July 2002), and all other references to the contract clause, Disputes. This contract clause also cancels and supersedes any other disputes language currently included in existing contractual actions.

52.233-2 Service of Protest (AUG 1996)

Agency protests filed with the Contracting Officer shall be sent to the following address: Contracting Officer
U.S. Government Publishing Office Agency Acquisition:
Room A530 732 North Capitol Street, NW
Washington, DC 20401

Agency protests filed with the Director of Agency Acquisition shall be sent to the following address: Chief of
Agency Acquisition

U.S. Government Publishing Office Agency Acquisition: Room A530

732 North Capitol Street, NW Washington, DC 20401

If a protest is filed with either the Director of Agency Acquisition or with the Government Accountability Office (GAO), a complete copy of the protest (including all attachments) shall be served upon the Contracting Officer and the GPO General Counsel within one day of filing with the Managing Director, Customer Services or with the GAO. Service upon the GPO Office of the General Counsel shall be made as follows:

General Counsel Office of the General Counsel U.S. Government Publishing Office 732 North Capitol Street, NW
Room C-814, Stop: GC Washington, DC 20401 FAX (202) 512-0076.

52.223 3 Hazardous Material Identification and Material Safety Data (JAN 1997)

(a) Hazardous material, as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (If none, insert None) Identification No.

- (c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.
- (d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered non responsible and ineligible for award.
- (e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.
- (f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.
- (g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.
- (h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:
 - (1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to
 - (i) Obtain medical treatment for those affected by the material; and
 - (ii) Have others use, duplicate, and disclose the data for the Government for these purposes.
 - (2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.
 - (3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of Section I)

Section J- List of Documents, Exhibits, and other Attachments

Attachment J.1 Adhesive Room Conceptual Drawings
Attachment J.2 QCIM Adhesive Room Layout
Attachment J.3 QCIM B543 Asbestos and Lead Tests
Attachment J.4 Wage Determination
Attachment J.5 Past Performance Questionnaire
Attachment J.6 Creating Adobe PDF Portfolio
Attachment J.7 Image
Attachment J.8 Image
Attachment J.9 Image
Attachment J.10 Image
Attachment J.11 Laboratory Fume Hood User's Manual

(End of Section J)

Section K – Representations, Certifications, and Other Statements of Offerors

K1. REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERS

- Incorporation by Reference of Representations and Certifications (Dec 2014)
- The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Section K)

Section L – Instructions, Conditions and Notice to Offerors

Agenda	Date
Site Visit	03/10/2026
Deadline for Offerors' Submission of Questions	03/17/2026
Q&A Posting Date	03/20/2026
Proposal Due Date	05/01/2026

SITE VISIT: The clauses at Materials Management Acquisition Regulation (MMAR) 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in contract awarded as a result of this solicitation. Accordingly, prospective offeror(s) are encouraged to inspect the site where the work will be performed. The site visit is optional. The Government will accept quotations from offerors that do not attend the site visit. **Prospective offeror(s) are required to notify the government of their interest in a visit by 5:00 pm EST, Friday, March 6, 2026.** Attendees are asked to arrive at the visitor center by 10:00 AM. This allows time for check-in procedures, ensuring everyone is ready for the tour at 10:30 AM. Attendees are required to bring an original government-issued ID, such as a driver's license or passport. Expired IDs will not be accepted, and the Government reserves the right to deny site access to any offeror who is not in possession of an acceptable form of identification at the time of the site visit. Photocopies of government IDs are also not acceptable. This is a common security measure for entry into government buildings to verify identity and ensure that all visitors are authorized to be on the premises.

- **Address:** 732 North Capitol St NW, Washington, DC 20001.
- **Meeting Location:** Please immediately report to the Visitor Center.
- **Check-In Process:** Check-in begins promptly at 10:00 AM. Attendees are advised to arrive on time. This timing aims to streamline the process and handle any administrative needs before the tour starts.
- **Start Time:** The tour is scheduled to begin at 10:30 AM. If attendees do not arrive and check in by 10:00 AM, they will miss the tour. The Government does not intend to provide an additional tour for those who arrive late.
- GPO Staff will be present to sign in attendees.

L1. INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS

General rules for submission of a proposal to this solicitation are contained in MMAR 52.215-1, Instructions to Offerors- Competitive Acquisition (May 2001).

- a. Offerors are fully responsible for the accuracy, completeness, and compliance with all proposal instructions set forth in the RFP. The penalty for making false statements to the Government is prescribed in 18 U.S.C. 1001.
- b. Offerors are cautioned to follow all instructions very carefully to ensure the Government receives all requested information in a form that will facilitate proposal evaluation. These instructions are not evaluation factors for this solicitation: Evaluation factors are contained in Section M. Failure to provide all required information may eliminate a proposal from consideration or may make an offeror ineligible for

- award.
- c. The term "Offeror" as used in this solicitation refers to the single legal entity named in the Offer. The legal entity must be a discrete entity separate from any other organization and may consist of the offeror team arrangement with multiple team members. The Offeror is solely responsible for work performed under the contract resulting from this solicitation. The single legal entity must be incorporated or otherwise legally established on or before the date of proposal submission. Any and all team members comprising the legal entity must sign the Performance Guarantee.
 - d. If an Offeror does not follow the instructions set forth herein, the Government may determine an offer to be unacceptable, or the Offeror's proposal may be eliminated from further consideration or the proposal may be downgraded and not receive full or partial credit under the applicable evaluation criteria.
 - e. This solicitation does not commit the Government to pay any costs incurred in the submission of any offer and other written and oral information, or in making necessary studies or designs for the preparation thereof or to acquire or contract for any services.
 - f. Any exceptions or deviations taken by the Offeror to the terms and conditions stated in this solicitation for inclusion in the resulting contract may make the offer unacceptable for award without discussions.
 - g. Single Award - It is the intent of the Government to award one contract as a result of this solicitation. The Government reserves the right to make one or more awards based upon the number of acceptable proposals received and the availability of funding.
 - h. If an Offeror does not understand the instructions in this Solicitation, then it should write to the contracting officer for clarification sufficiently in advance of the deadline for the receipt of proposals in order to obtain an answer in time to meet that deadline.
 - i. Amendments to solicitations – If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

L2 PROPOSAL INSTRUCTIONS

Offerors shall submit one (1) electronic PDF portfolio file containing the complete proposal. The portfolio must contain the following four (4) volumes:

Volume Number	Title
Volume I	Signed SF 1442, SAM.gov registration, and W9
Volume II	Technical Proposal
Volume III	Past Performance
Volume IV	Cost/Price Proposal

Each volume must be clearly labeled on a cover sheet with the following:

- Volume number and title
- 040ADV-26-R-0012
- Offeror's Name

Proposal Format

- Submit proposals in PDF portfolio format with all required volumes.
- Proposal must be single-spaced, in 12-point font (or 10-point proportional), printed in black text on white background.
- There are no page limits, unless otherwise specified in this solicitation.
- Company logos and color graphics are permitted for illustrations.

Compliance and Exceptions

Offerors must comply with all requirements of the solicitation, including:

- Terms and conditions
- Representation and certifications
- Technical requirements

If an Offeror takes any exceptions, they must:

- Clearly identify the volume, section, and paragraph
- Provide a full explanation of:
 - Why the exception is taken
 - Any benefit to the Government
 - The impact on performance, cost, and compliance

Volume I: Signed SF 1442, SAM.GOV Registration, and W-9

Volume II – Technical Proposal: The Offeror must demonstrate technical understanding of Section C. Statement of Work of this solicitation.

FACTOR #1 - Technical Capability and Management Approach:

- The Offeror must propose a technically qualified plan that supports the SOW requirements and complies with construction documents and meets the customers' specifications. The offeror must submit a timeline of their approach and must demonstrate accountability through the development of a Quality Control/Quality Assurance plan. The plan shall clearly outline and explain the management approach for key personnel, non-key personnel, and subcontractors, given the multidisciplinary nature of the work solicited. The plan should clearly demonstrate the offeror's knowledge and expertise managing design-build projects in commercial or federal properties of varying size and scope. The offeror shall also demonstrate their knowledge of impediments typical to construction services and the offerors methods to identify and mitigate these issues.
- The Offeror's technical proposal must include a **Timeline and Schedule of Milestones** of its technical approach. The Schedule should outline the sequence of tasks and activities required to implement the technical approach. The plan should be realistic and achievable.
- The Offeror must submit a **Quality Control/Quality Assurance Management Plan** that demonstrates accountability. The plan must identify an acceptable approach for quality assurance and effective management of subcontractors, if applicable. The plan shall clearly outline how the offeror will plan, coordinate, manage and provide corrective action for deficiencies.
- The Offeror must submit a **Project Management (PM) Plan** that includes a Schedule Management Plan that demonstrates how the project schedule will be developed, maintained, and controlled. The PM plan should also demonstrate the Design Coordination processes and tools to manage design changes.
- The Offeror must submit a **Safety Plan** that demonstrates Risk Management and Mitigation. The plan should identify potential hazards and mitigation strategies and to be reviewed and updated regularly.

FACTOR #2 - Key Personnel:

The proposed key personnel proposed by the offeror are essential for successful completion of this design-build contract. The offeror shall provide a plan to assign the required key personnel over the total duration of the contract. The following shall be included in the proposal for submission of key personnel.

- Signed and dated letters of commitment for each key personnel accepting employment on the contract; and

- Resumes not exceeding five (5) pages for each individual proposed as key personnel.

The Government will evaluate the following key personnel for this solicitation:

- **Project Manager**

Responsibilities	Oversee the project from start until completion. Provides overall leadership and direction. Ensure schedule, budget, and contract compliance. Acts as primary liaison with the Government
Minimum Experience	Ten (10) Years
Minimum Education	Bachelor's degree in Engineering, Architecture, Construction, Project Management, or a related field. Waived for 15 years of experience in a similar role.

- **Superintendent**

Responsibilities	Oversees and manages third-party contractor construction activities. Serves as the primary point of contact between project stakeholders. Maintains the project schedule and ensures that work is completed on time.
Minimum Experience	Five (5) Years
Minimum Education	Bachelor's degree in Engineering, Architecture, Construction, Project Management, or a related field. Waived for 10 years' experience in a similar role.

- **Quality Control Lead**

Responsibilities	Works with COR and third-party contractors to ensure all work conforms to the contract requirements including workmanship, materials, and equipment. Manages coordination of inspections and ensures appropriate team members are on site during each definable feature of work.
Minimum Experience	Five (5) Years
Minimum Education	Bachelor's Degree in Engineering, Architecture, Construction, Project Management, or a related field. Waived for 10 years' experience in a similar role.

- **Safety Lead**

Responsibilities	Performs safety inspections of third-party contractor constructions activities. Document and review compliance with safety standards and ensure safe work practices.
Minimum Experience	Five (5) Years
Minimum Education	Bachelor's degree in occupational health or a related field. Waived for 10 years' experience in the Construction Safety Field

Volume III- Past Performance:

FACTOR #3 – Past Performance: Offerors must ensure that the Past Performance Questionnaire (Attachment 1) is completed by five (5) different customer references for projects of similar scope and size. A minimum of five (5) completed questionnaires must be submitted for proper evaluation of this volume. The Government will accept questionnaires for projects currently in progress, as well as those completed within five (5) years prior to the solicitation closing date. Offerors may also submit other forms of past performance documentation as supplemental information. However, if the minimum number of completed GPO Past Performance Questionnaires (PPQs) is not submitted, this volume will be considered non-responsive and may not be evaluated.

Volume IV- Cost/Price Proposal: The Offeror's price proposal must include a narrative to explain the basis for the proposed price. The price in the proposal must be referenced as cited under SECTION B. SUPPLIES/SERVICES AND PRICE.

In addition, Offerors must provide a single Excel workbook, incorporating both prime contractor and subcontractor (if applicable) cost/pricing details. A separate spreadsheet tab must be provided that contains each subcontractor's detailed costs. Offerors must incorporate and link each subcontractor's budget totals to the appropriate subcontract cost line item in the prime Offeror's price proposal. Subcontractors that do not wish to disclose proprietary subcontract pricing information to the prime may provide redacted information to the prime Offeror and then follow the instructions below for submitting a sealed package.

Evidence of Responsibility: The Government may obtain and consider information concerning the offeror's evidence of responsibility, in accordance with MMAR 9.104.

Valid acceptance of offers: The offeror agrees to hold the price in its quotation for 180 days from the date specified for receipt of offer in this solicitation or in

L.3 Submission, modification, revision, and withdrawal of proposal

The Government will not accept paper copies of proposals. All proposals, modifications, revisions, and withdrawals must be submitted electronically via email to the following addresses:

Contract Specialist: Brittany Freeman at bfreeman@gpo.gov
Contracting Officer: Troy White at twhite@gpo.gov

L.4 Email Subject Line and Format

Email Subject Line Format

Use the following format for your email subject line to ensure proper tracking:

Ex: [040ADV-26-R-0012] - [Your Company Name] Proposal Submission

File Size Limit

The total size of any single email submission must not exceed **25 MB**. In addition, no individual attachment within that email may exceed **5 MB**. All attachments must be in Adobe Acrobat (.pdf) format and must not be zipped. If necessary, split the submission into a maximum of two emails and clearly label them in the subject line (e.g., "Email 1 of 2").

File Format and Naming

Submit each volume as a single PDF portfolio file, labeled as follows:

Ex: [Volume I-IV] [040ADV-26-R-0012] Your Company Name].pdf

Do not send separate emails for each volume

Examples:

Volume I_Signed SF 1442_Your Company.pdf
Volume II_Technical Proposal Your Company.pdf
Volume III_Past Performance Your Company.pdf
Volume IV_Price Proposal Your Company.pdf

L.5 Submission Deadline

Electronic proposals must be received by **5:00 PM EST on May 1, 2026**, as specified on SF1442.

(End of Section L)

Section M –Evaluation Factors for Award

NOTICE LISTING PROVISION CLAUSES INCORPORATED BY REFERENCE:

The following contract clauses pertinent to this section are hereby incorporated by reference (by Citation Number, Title, and Date) in accordance with the clause at MMAR 52.252-1 Solicitation Provisions Incorporated by Reference in Section M of this Solicitation.

M.1. GENERAL INFORMATION

- a. To be acceptable and eligible for evaluation, proposals must be prepared in accordance with Section L and must meet all the requirements set forth in the other sections of this solicitation. The Government will make an initial review of proposals to determine compliance with these instructions. The Government may determine an Offeror to be unacceptable and exclude it from further consideration for failure to comply with Section L. The Government may award contracts without discussions with Offerors in accordance with MMAR 52.215 1. Therefore, Offerors are advised to submit their best technical and price proposals in the initial offer. When evaluating the competing Offerors, the Government will consider the written information provided by the Offerors and any other information obtained by the Government through its own research.
- b. The Government intends to evaluate proposals in accordance with Section M of this Request for Proposal. The Contracting Officer will make the award to the Offeror whose proposal represents the best value to the Government considering both technical and price factors. For overall evaluation purposes, per MMAR 15.304(e)(1), all evaluation factors other than price, when combined, are significantly more important than price factors.
- c. Evaluations will be based on the information included in the proposal, resumes' experience, and the Offeror's Past Performance review(s), and other information provided by the Offeror. The submitted technical information will be evaluated by a technical evaluation committee using the technical criteria shown below. The Government intends to conduct the evaluation and selection process as detailed below in Section M.4. The Government reserves the right to conduct discussions, if the Contracting Officer determines it to be necessary. The Government intends to rate the proposals based on the technical evaluation results.
- d. The Offerors must submit the proposal in response to this solicitation for all CLINS listed in Section B of this solicitation.
- e. Award: In accordance with MMAR 15 the Government intends to award one contract resulting from this solicitation to the Offeror responsible whose proposal represents the best value to the Government after evaluation in accordance with the factors as set forth in this solicitation in accordance with MMAR 15. The Government also reserves the right to award more than one contract and/or not to award contract in response to this solicitation.
- f. The basis for award will be best value in accordance with MMAR Part 15.101 1 Trade Off Process. Offerors are cautioned that the award may not necessarily be made to the lowest priced proposal. The Government intends to rate the proposals based on the tradeoff analysis.

M.2. DETERMINATION OF COMPETITIVE RANGE

- a. The competitive range of Offerors with whom negotiations will be conducted will be determined by the contracting officer pursuant to MMAR 15.306(c). A competitive range determination **(if deemed necessary)** may take place at any point in the evaluation process.
- b. In accordance with MMAR 52.215 1, the Contracting Officer may determine that the number of most highly rated proposals that might otherwise be included in the competitive range exceeds the number at which an efficient competition can be conducted. Should that be the case, the Contracting Officer may then limit offers in the competitive range to the greatest number that will permit an efficient competition among the most highly rated offers.
- c. Best Value Tradeoff: This procurement utilizes the tradeoff process set forth in MMAR 15.101 1. If the Contracting Officer determines that competing technical proposals are essentially equal, price factor may become the determining factor in source selection. Further, the Contracting Officer may award a higher priced Offeror if a determination is made that the technical evaluation of that Offeror merits the additional price.
- d. Award: In accordance with FAR 52.215 1(f), the Government intends to award a single contract resulting

from this solicitation to the responsible Offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors as set forth in this solicitation.

M.3. SOURCE SELECTION

- a. The Government intends to evaluate Offerors in accordance with Section M of this RFP and make the contract award to the responsible Offeror whose proposal represents the best value to the U.S. Government. In accordance with Section L of this solicitation, award will be made by the Contracting Officer to the responsible Offeror whose proposal represents the best value to the U.S. Government after evaluation in accordance with all factors in this solicitation.
- b. This procurement utilizes the tradeoff process set forth in MMAR 15.101 1. If the Contracting Officer determines that competing technical proposals are essentially equal, cost/price factors may become the determining factor in source selection. Conversely, if the Contracting Officer determines that competing price proposals are essentially equal, technical factors may become the determining factor in source selection. Further, the contracting officer may award to a higher priced Offeror if a determination is made that the higher technical evaluation of that Offeror merits the additional cost/price.
- c. Responsibility Determination: The Contracting Officer will conduct a responsibility determination for the successful offeror per MMAR Part 9.103.

M.4. TECHNICAL EVALUATION CRITERIA

Evaluation factors are listed in descending order of importance. All evaluation factors will be rated. No rating will be performed on proposals determined to be non-responsive to the RFP. The Government reserves the right to exclude any offers receiving an unsatisfactory rating and/or marginal ratings in both Factors 1 and 2 from award consideration.

No	Technical Evaluation Factors	Importance
Factor 1	Technical Capability and Management Plan	Most Important Factor
Factor 2	Key Personnel	Least Important Factor
Factor 3	Past Performance	Second Most Important Factor

The following evaluation rating descriptions will be used for technical proposal and key personnel:

Ratings	Factors 1 and 2 Evaluation's Definitions
Exceptional	An exceptional proposal contains exceptional strengths, exceptional features, highly preferred personnel qualifications or innovations that should substantially benefit the SOW and significantly exceeds the evaluation standards; the proposed solution indicates an exceptionally thorough and comprehensive understanding of the SOW, resources, schedules and other aspects essential to successful performance; has a high probability of satisfying the requirement; has no weaknesses or deficiencies. The risk of unsuccessful contract performance is extremely low.
Very Good	A very good proposal contains one or more major and/or minor strengths which will benefit the program and exceeds the evaluation standards; the proposed solution indicates a strong grasp of the SOW objectives, resources, schedules and other requirements essential to successful performance and contains preferred personnel qualifications; has a good probability of satisfying the requirement, if there are some weaknesses, they are minor. Strengths significantly outweigh any weaknesses that exist. There are no deficiencies. The risk of unsuccessful contract performance is very low or no degree of risk of unsuccessful contract performance.
Good	A good proposal contains some strengths and may have some weaknesses; the proposed solution indicates a good grasp of understanding of the SOW objectives, resources, schedules and other requirements essential to successful performance; has an ample probability of satisfying the requirement or meets the requirement; any weaknesses can be readily corrected. Any strengths outweigh any weaknesses that exist. There are no deficiencies. The risk of unsuccessful contract performance is low.

Marginal	A marginal proposal contains a number of weaknesses that are equal or outweigh any strengths. The proposed solution indicates a limited or vague understanding of the SOW objectives, resources, schedules and other requirements essential to successful performance; has a moderate probability of satisfying the requirement or marginally meets the requirement; has a number of deficiencies that may be corrected. The risk of unsuccessful contract performance is moderate.
Unsatisfactory	An unsatisfactory proposal contains numerous weaknesses and deficiencies that demonstrate a lack of understanding of the Government's needs; the proposed solution indicates a lack of understanding of the SOW's goals, resources, schedules and other requirements essential to successful; has a low probability of satisfying the requirement or fails to meet the evaluation standards; has deficiencies that cannot be corrected. Weaknesses and or deficiencies significantly outweigh any strengths that exist. The risk of unsuccessful contract performance is high

i. Technical Capability and Management -Factor 1

The Government will evaluate the degree to which the Offeror's proposal reflects a clear understanding of work requirements as well as the Offeror's ability to develop an A/E design. The Government will evaluate the Offeror's plan for organizing, staffing, and managing the contract with the qualified personnel and the means that will be used to accomplish the contract requirements. The Draft Quality Management Plan will also be evaluated to determine the offeror's ability to maintain a high standard of work, especially in the presence of obstacles.

ii. Key Personnel Factor 2

Proposed key personnel must clearly demonstrate appropriate level of depth and breadth of relevant knowledge, education, and skills to fully function independently with minimum supervision. Key personnel are essential to the work being performed. The education, experience, and capabilities of key personnel will be evaluated to determine the degree to which they possess the qualifications to perform their proposed duties under the contract. Offerors must provide proof of adequate and qualified personnel for each category described in the Statement of Work. This includes, in resume format, responsibilities, technical competencies, credentials, experience, and education. A clear organizational structure should be outlined, demonstrating how key personnel will be managed throughout the project. Experience in the design and construction of similar sized spaces for office and medical work are desired. Disciplinary diversity (architectural, mechanical, electrical engineering) among the key personnel is also desired.

iii. Past Performance

The offeror's past performance will be evaluated in accordance with MMAR 15.305(a)(2). Performance information will be used for both responsibility determination and best value decision. GPO may use performance information obtained from sources other than those identified by the Offeror and utilize existing databases of contractor performance information. The Offeror's performance information determined to be relevant will be evaluated in accordance with the elements listed in the Past Performance Questionnaire items, each of which will be of equal importance. Adverse past performance information to which the offeror has not previously had an opportunity to respond will be addressed in accordance with the policies and procedures set forth in MMAR 15.3. GPO will initially determine the recency and relevance of performance information as a predictor of probable performance under this requirement.

- **Recency Assessment:** An assessment of the past performance information will be made to determine if it is recent. To be recent, the effort must be ongoing or must have been performed during the past 6 years from the date of issuance of this solicitation. Past performance information that fails this condition will not be evaluated.
- **Relevancy Assessment:** An evaluation of all recent performance information obtained to determine whether the construction provided under those contracts relates to a similar size and scope as those required by this solicitation. In determining the relevancy of effort performed under individual past performance contracts, the Government will consider the specific effort or portion consistent with that

proposed by the prime contractor and/or subcontractors. The past performance information obtained from sources will be used to establish the relevancy of past performance.

In accordance with MMAR 15.305(a)(2)(iv), an Offeror's past performance will not be evaluated favorably or unfavorably when:

- 1) The Offeror lacks relevant performance history; or
- 2) Information on performance is not available.

When this occurs, an offeror lacking relevant performance history is assigned a neutral rating. Prior to assigning a neutral past performance rating, the contracting officer may consider a broad range of information related to an offeror's performance.

Contractor's performance information will be evaluated on a "Satisfactory or Unsatisfactory or Neutral" basis. The chart below details the rating scheme and the definitions that apply to the contractor performance information factor. An overall rating will be assigned for the factor.

Satisfactory: The offeror's past performance of previously awarded recent and relevant projects met or exceeded most, if not all, project requirements. The company may have experienced some problems, for which corrective actions taken by the contractor were, or are expected to be, effective. Performance of completed projects was consistently of adequate or better quality. The offeror's past performance record leads to an expectation of successful performance.

Unsatisfactory: The offeror's performance of previously awarded recent and relevant projects did not meet some or most project requirements and recovery, if any, did not occur within the stated period of performance. The offeror's performance reflected some serious problems for which the offeror either failed to identify or implement corrective actions in a timely manner, or for which correctible actions were mostly ineffective. Performance of completed projects was consistently of mediocre or poor quality. The offeror's past performance record leads to a reasonable expectation that successful performance would not be achieved or that it can occur only with increased levels of government management and oversight.

iv. Cost/Price Evaluation

- a. Price evaluation will be performed to determine whether the proposed price is complete for the work to be performed, reflects a clear understanding of the requirements, and is consistent with the approaches set forth in the Offeror's technical proposal and budget narrative, and to determine if the proposed profit and total price are fair and reasonable.
- b. This evaluation is conducted with the expectation of adequate price competition and will rely heavily on market forces to determine whether the proposed price is fair and reasonable. The comparison of proposed price in response to this solicitation is the preferred technique for this evaluation. GPO will also compare the proposed price to historical price paid for the same or similar services and the independent government cost estimate. Other techniques and procedures set forth in MMAR 15.404 1(b), if deemed necessary, may be used to ensure proposed price is fair and reasonable.
- c. No price evaluation will be performed on proposals determined to be non-responsive or technically unacceptable.
- d. The Government may use the results of cost/price realism analysis to adjust the offeror's proposal to a most probable cost to the Government. The analysis may include information from a government auditing agency, Government technical personnel, and other sources.

(End of Section M)